

24STCV26351 24STCV26351

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Department: 529

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Case Number: 24STCV26351 Hearing Date: August 26, 2026 Dept: 529

TALI SIGALUS VS MARTIN K. P. CHIANG, ET

AL.

DEFENDANT/CROSS-COMPLAINANT'S

MOTION FOR ISSUE, EVIDENTIARY, AND MONETARY SANCTIONS

Date of Hearing: August

26, 2026 Trial Date: March 29, 2027

Department: 529 Case No.: 24STCV26351

Moving Party: Defendant

Martin Chiang

Responding Party: No

opposition

BACKGROUND

This is a wage and labor claim. On

October 10, 2024, Plaintiff Tali Sigalus filed a complaint against Defendants

Martin K. P. Chang and Mason Chang for various Labor Code violations as well as violation of Business and Professions Code and wrongful termination in violation of public policy.

On March 7, 2025, a cross-complaint was filed by Martin K.P. Chang against Tali Sigalus for elder financial abuse, intentional interference with contractual relations, intentional interference with prospective economic advantage, intentional misrepresentation, negligent misrepresentation, intentional infliction of emotional distress, negligent infliction of emotional distress, violation of Business and Professions Code section 17200, conversion, breach of employment contract, trespass to land, conversion and breach of fiduciary duty.

[Tentative] Ruling

Defendant/Cross-Complainant Martin

Chiang's Motion for Issue, Evidentiary and Monetary Sanctions is GRANTED, in part.

DISCUSSION

Defendant/Cross-Complainant Martin

Chiang moves the court for issue, evidentiary, and monetary sanctions against Plaintiff/Cross-Defendant Tali Sigalus based on her failure to comply with the court's order dated October 15, 2025. Defendant contends Plaintiff had thirty

days to provide further responses and documents that were responsive to Defendant Martin Chiang's Requests for Production of Documents Nos. 1-5, 8, and 38-39. However, Plaintiff has not provided verified substantive responses to these requests. Furthermore, Plaintiff has not provided all documents in her possession. .

Where a party fails to obey an order compelling answers to discovery, "the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction." (CCP §§ 2030.290(c), 2023.010(c); R.S.

Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal.App.4th 486,

495.) The Court may impose a terminating sanction against

anyone engaging in conduct that is a misuse of the discovery

process. (CCP§ 2023.030(d).) Misuse of the discovery process

includes failure to respond to an authorized method of discovery or disobeying

a court order to provide discovery. (CCP § 2023.010(d),

(g).) A terminating sanction may be imposed by an order dismissing

part or all of the action. (CCP §

2023.030(d)(3).)

Defendant/Cross-Complainant Martin

Chiang contends this court granted Defendant Martin Chiang's Motion to Compel

Further Responses to Requests for Production of Documents (Set One) on October

15, 2025. Plaintiff, however, did not comply with the court order and once it

became clear that Plaintiff did not intend to comply with the Court's order by

the thirty-day deadline, Defendant engaged in extensive meet and confer

efforts. After nine months of discovery disputes, repeated meet-and-confer

efforts, and prolonged attempts to obtain the documents, Plaintiff has not

still fully produced all the documents.

The court denies the motion for issue

and evidence sanctions. As noted by Defendant Chiang, "[t]he trial court has

broad discretion in selecting discovery sanctions, subject to reversal only for

abuse. The trial court should consider both the conduct being sanctioned and

its effect on the party seeking discovery and, in choosing a sanction, should 'attempt

[] to tailor the sanction to the harm caused by the withheld discovery.'" (Doppes

v. Bentley Motors, Inc., (2009) 174 Cal.App.4th 967, 992.) At this time,

Defendant has not shown that issue sanctions or evidentiary sanctions are

warranted or that a lesser sanction would fail to curb the abuse.

As for the request for monetary

sanctions, Defendant Chiang requests \$6,409.00 for bringing this motion. The

court grants the request for monetary sanctions in the reduced amount of \$4,295.00,

payable within 30 days.

Based on the foregoing, Defendant/Cross-Complainant

Martin Chiang's Motion for Issue, Evidentiary and Monetary Sanctions is

GRANTED, in part.